



Case refs: CASE-20213522 & CASE-20215102

Doc ref: CD/22/24260

12 April 2022

Dr Richard McLean

Via email: richarddrawsstuff@gmail.com

Dear Dr McLean

Your complaints about

- **Mercy Hospital, Victims of Crime Assistance Tribunal and Ben Calder**
- **Constable Lachey Musket**

I refer to your complaints to IBAC about the conduct of public officers and several emails from you between 6 October 2021 until 1 February 2022.

Thank you for taking the time to submit your complaints and the further information. IBAC takes all complaints seriously and carefully considers all available information.

I acknowledge the length of time taken in the assessment of your complaints and confirm that, in part, the time taken was required due to there being multiple complaints and the overlapping nature of material provided to IBAC, which covers multiple public officers and concerns that you have raised with other jurisdictions, as well as previously with IBAC.

IBAC's decision regarding your complaints

As you may be aware, when a complaint is received by IBAC there are three actions that we can take under the *Independent Broad-based Anti-corruption Commission Act 2011* (IBAC Act):

1. Dismiss
2. Investigate
3. Refer

In relation to your complaints IBAC has determined not to investigate or refer your complaints to another agency for investigation. IBAC may decide not to take further action in relation to a complaint for a number of reasons, which are set out in section 67 of the *Independent Broad-based Anti-corruption Commission Act 2011*.

In general, IBAC prioritises investigations into allegations of serious or systemic public sector corruption and police misconduct, that appear to have enough evidence to investigate, and which involve matters not previously dealt with by IBAC or another agency.

We appreciate this may not be the outcome you were expecting but we can assure you that IBAC takes all complaints received seriously and we value the time and effort you have given to bring these matters to our attention. We also note that the information IBAC receives is recorded and will assist IBAC to learn of potential corruption risks, and help target our prevention and education activities.

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Decision about whether the complaints are public interest complaints

IBAC is required to assess whether complaints we receive are public interest complaints under the *Public Interest Disclosures Act 2012* (PID Act). The purpose of this assessment is to determine what confidentiality obligations apply to your complaints.

In this instance, IBAC has determined that the matters are not public interest complaints. This decision was made after consideration of the information provided.

This decision means that the confidentiality provisions under part 7 of the PID Act do not apply, and that IBAC may provide your identity, or contents of the complaints, to other agencies where we feel passing your complaint to be appropriate for their interest and jurisdiction.

Although IBAC has determined your complaints are not public interest complaints, you will still be entitled to the protections under part 6 of the PID Act. The enclosed fact sheet explains these protections.

To better understand IBAC's assessment process, the definition of corrupt conduct and the thresholds for IBAC to investigate corruption, please visit ibac.vic.gov.au

If you need support

Sometimes making a complaint can be very stressful or difficult for a person. If you are impacted by this complaint, we encourage you to contact your healthcare provider. Alternatively, you may wish to access one of the support services listed on our website: <https://www.ibac.vic.gov.au/reporting-corruption/what-happens-to-your-complaint/mental-health-support>

Yours sincerely



Sue Kapourelakos

Director

Assessment & Review

Enclosed

Part 6 of the Public Interest Disclosure Act 2012

Fact sheet - not a Public Interest Complaint